

- RAG Learning

1.1 The Constitution

Politics — AQA (7152) — Paper 1 (Government and Politics of the UK)

The UK constitution is **uncodified**, **unentrenched** and **unitary**. Almost every question on this topic reduces to a consequence of one of those three words, so it is worth being precise about what each means before anything else.

Uncodified — not collected into a single authoritative document. (Not "unwritten": most of it *is* written down, just scattered across many sources.)

Unentrenched — constitutional law has no higher legal status than ordinary law, so it can be changed by a simple Act of Parliament.

Unitary — sovereignty is held centrally; any regional power is devolved from the centre rather than constitutionally divided.

1. Sources of the constitution

Source	What it is	Examples
Statute law	Acts of Parliament. The highest source, since Parliament is sovereign.	Human Rights Act 1998; Scotland Act 1998; Constitutional Reform Act 2005; European Union (Withdrawal) Act 2018
Common law	Judge-made law built on precedent, plus the residual royal prerogative.	Judicial review principles; prerogative powers over treaties and deployment
Conventions	Unwritten rules of political practice, binding in practice but not enforceable in court.	Salisbury Convention; royal assent; collective responsibility; Sewel Convention

Works of authority	Texts of such standing that they are treated as guides to practice.	Erskine May's <i>Parliamentary Practice</i> ; Bagehot's <i>The English Constitution</i> ; the Cabinet Manual
Treaties	International agreements given effect domestically.	European Communities Act 1972 (repealed 2020); the ECHR via the HRA

Historical landmarks

- **Magna Carta 1215** — established that the monarch is subject to law; the origin of due process.
- **Bill of Rights 1689** — the monarch cannot suspend laws or raise taxes without Parliament; established parliamentary privilege.
- **Act of Settlement 1701** — succession to the throne; security of judicial tenure.
- **Acts of Union 1707 and 1800** — created the United Kingdom.
- **Parliament Acts 1911 and 1949** — established Commons primacy by limiting the Lords to delay.

2. Principles of the constitution

Parliamentary sovereignty

Dicey's formulation: Parliament may make or unmake any law whatever; no body may override an Act of Parliament; and no Parliament may bind its successors. The third limb is what makes the constitution unentrenched.

The rule of law

Everyone, including ministers and public bodies, is subject to the law and equal before it; there is no punishment without a breach of law established in the ordinary courts; and rights are protected through ordinary legal process.

Exam Tip: Dicey called these the **twin pillars**, but they pull against each other. Sovereignty implies Parliament may enact *anything*; the rule of law implies some principles should

constrain what any body may enact. This tension is a ready-made evaluative paragraph in almost any question on this topic.

Other principles

- **A unitary state** — now qualified by devolution, hence "quasi-federal".
- **Constitutional monarchy** — the monarch reigns but does not rule; prerogative powers are exercised by ministers.
- **Parliamentary government under a constitutional monarchy** — the executive is drawn from and accountable to the legislature (fusion, not separation, of powers).

3. Constitutional reform since 1997

Reform	Effect	Assessment
Human Rights Act 1998	Incorporated the ECHR; s.3 interpretive duty; s.4 declarations of incompatibility	Made rights litigation practicable domestically — but deliberately stopped short of entrenchment
Devolution (1998 onwards)	Legislatures in Scotland, Wales and Northern Ireland with primary law-making powers	The most significant dispersal of power — but asymmetric, and England was left out
House of Lords Act 1999	Removed all but 92 hereditary peers	Increased the Lords' legitimacy and assertiveness — but composition remains wholly unelected
Constitutional Reform Act 2005	Created the Supreme Court; removed the Law Lords from the legislature; reformed the Lord Chancellor; created the Judicial Appointments Commission	Sharpened the separation of powers

Freedom of Information Act 2000	Right of access to information held by public bodies	Improved transparency; exemptions are extensive
Fixed-term Parliaments Act 2011	Fixed five-year terms, removing the PM's power to call an early election	Repealed in 2022 , returning the power to the prerogative — a perfect illustration of unentrenchment

Exam Tip: The FTPA is the single best example in the whole topic. Passed in 2011, repealed in 2022. A significant constitutional change made and unmade within eleven years by ordinary legislation — something that would be near-impossible in the USA. Use it whenever you need to evidence flexibility or insecurity.

Evaluating the reform programme

The standard judgement is that reform has been **extensive but piecemeal**. It democratised some institutions (devolution, the Lords' hereditary element) and strengthened rights and the judiciary, but left others untouched — Lords composition, the Westminster electoral system, the prerogative — and produced no coherent overall settlement.

4. The codification debate

For codification	Against codification
Clarity — a single document citizens could actually read; disputes such as the 2019 prorogation turned on rules nobody could point to in one text	Flexibility — the constitution adapts quickly; devolution and the Supreme Court were delivered within single parliamentary terms

Entrenchment — rights and devolved institutions protected from a temporary Commons majority	Judicial power — codification transfers the final word on contested political questions from elected politicians to appointed judges
Limits an over-mighty executive — addresses the "elective dictatorship" concern	Rigidity — the US Constitution has been amended only 27 times and retains provisions widely regarded as obsolete
Clarifies devolution — would settle the Westminster/devolved boundary that Brexit exposed	No agreed process or content — the Lords, the electoral system, the monarchy and the union would all have to be settled at once

Exam Tip: The strongest evaluative move is to notice that **flexibility and insecurity are the same property viewed from opposite sides**. Every argument for codification is the mirror image of an argument against it. A conclusion that simply asserts one list beats the other will not reach the top band; one that explains *which risk matters more and why* will.

5. Key cases

Case	Significance
<i>Factortame</i> (1991)	UK courts disapplied an Act of Parliament conflicting with EU law — the first apparent qualification of sovereignty
<i>Miller I</i> (2017)	Ministers could not use the prerogative to remove rights conferred by statute; only Parliament could authorise triggering Article 50. Also held the Sewel Convention judicially unenforceable despite statutory recognition
<i>Miller II</i> (2019)	The five-week prorogation was unlawful because it frustrated Parliament's constitutional functions without reasonable justification — prerogative held justiciable

Reading Miller I carefully matters. It is frequently misremembered as a defeat for parliamentary sovereignty. It was the opposite: the Court *protected* Parliament by holding that only Parliament, not ministers, could authorise the removal of statutory rights.

Key terms

Term	Definition
Codified	Collected into a single authoritative document with higher legal status
Entrenched	Protected from amendment by ordinary legislation; requiring a special procedure
Parliamentary sovereignty	Parliament is the supreme law-making body; no body may override it; no Parliament binds its successors
Rule of law	Everyone, including government, is subject to and equal before the law
Convention	An unwritten rule of political practice, binding in practice but not enforceable in court
Royal prerogative	Residual Crown powers exercised in practice by ministers, requiring no statutory authority
Quasi-federal	Devolved powers so politically entrenched that reclaiming them is impractical, though legally possible
Declaration of incompatibility	A court finding under HRA s.4 that a statute conflicts with Convention rights; the statute remains valid

Essential examples

- **FTPA 2011, repealed 2022** — unentrenchment in action.
- **Human Rights Act 1998** — rights strengthened without entrenchment; repeatedly threatened with replacement.

- **Scotland Act 2016** — declared the Scottish Parliament "permanent", yet legally still removable.
- **Miller I and II** — the courts policing the limits of prerogative power.
- **UK Internal Market Act 2020** — Westminster legislating on devolved matters without consent, exposing Sewel's weakness.